

Sudhir Kumar v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 3 August 2016 · WRIT - C No. - 35635 of 2016 · **Writ disposed; petitioner relegated to Clause 6.5 application.**

HEADNOTE

A writ seeking rectification of an electricity bill was disposed of by directing the consumer to apply to the competent authority under Clause 6.5 of the U.P. Electricity Supply Code, 2005. If that application is made, the authority must consider and dispose of it within four weeks of production of a certified copy of the order.

FACTUAL SUMMARY

Sudhir Kumar filed a writ petition in the Allahabad High Court seeking rectification of his electricity bill. The respondents were the State of Uttar Pradesh and three others. The petition was heard by a Division Bench comprising Tarun Agarwala and Vipin Sinha, JJ. The order records no particulars of the disputed bill, the amount, the meter, or any prior representation to the licensee. After hearing counsel for the parties, the Court did not examine the bill on merits.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

bill rectification — Clause 6.5 forum

HOLDING

A consumer who seeks rectification of an electricity bill must file an appropriate application before the competent authority under Clause 6.5 of the Electricity Supply Code, 2005; the writ court will not itself rectify the bill. If such an application is made, the authority shall consider and dispose of it within four weeks of production of a certified copy of the order. ¶ 1

PRINCIPLE TAGS

billing-objection-to-executive-engineer-under-6.5 A writ seeking rectification of an electricity bill was disposed of by directing the consumer to apply to the competent authority under Clause 6.5 of the U.P. Electricity Supply Code, 2005.. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OF THE ELECTRICITY BILL AND ENTITLEMENT TO RECTIFICATION ON MERITS

¶ 1